

Counsel Review Pack - Index

Everything in this folder is either (a) a real official document pulled directly from the issuing authority's website, or (b) a starting draft assembled from the non-legal research already done in HUMAN_CONFIRMATION_NEEDED.md (sections C1, G8, G9, G11-G14). All drafts have [COUNSEL TO CONFIRM] / [COUNSEL TO DRAFT] markers wherever a real lawyer's judgment, not research, is what's actually missing. The point is to save counsel time (reviewing a structured draft is faster than starting from a blank page, and reading the real source law is faster than reading our paraphrase of it), not to skip hiring one.

Do not use anything here in production, sign anything based on it, or treat a gap as filled just because a file exists. Every item is still LOCKED in docs/post-CR.md Section C until counsel actually signs off.

Our drafts (this folder, root)

- 01-scc-controller-to-processor.pdf - Draft Saudi SCC (Controller-to-Processor form) for the Anthropic cross-border transfer. Source: C1, G11.
- 02-sdaia-risk-assessment.pdf - Draft SDAIA cross-border risk assessment (Feb 2025 guideline) for the Anthropic transfer. Source: G12.
- 03-breach-notification-runbook.pdf - Draft 72-hour breach detection/notification runbook. Source: G13.
- 04-controller-processor-determination.pdf - Memo laying out the facts for counsel's controller-vs-processor call. Source: G14. Resolve this one first - 01, 02, and 05 all depend on it.
- 05-dpa-template.pdf - Draft Data Processing Agreement (Taweed and each clinic customer). Source: C1, G14.
- 06-nphies-tou-business-risk.pdf - Condensed risk summary of NPHIES's binding portal Terms and Conditions, built from the verbatim text pulled in official-sources/nphies-tou-verbatim-ar.pdf. Source: G8.
- 07-cst-cloud-computing-applicability.pdf - The open CST Cloud Computing Regulatory Framework question. Source: G4.
- 08-nphies-vendor-agreement.pdf - What's known/unknown about a separate NPHIES vendor agreement. Source: G9.

Real official documents (official-sources/)

Pulled directly from the issuing authority's own site on 2026-07-22 (browser-fetched - these government sites block plain scripted requests, so each was verified to load in a real browser first). Nothing in these files has been paraphrased, summarized, or recreated - they are the actual PDFs as published, or (for the one page with no PDF version) a verbatim text extraction.

- pdpl-implementing-regulations-en.pdf - Implementing Regulation of the Personal Data Protection Law. Source: sdaia.gov.sa/en/SDAIA/about/Documents/ImplementingRegulationPersonalDataProtectionLaw.pdf
- pdpl-executive-regulations-en.pdf - PDPL Executive Regulations. Source: sdaia.gov.sa/en/SDAIA/about/Documents/ExecutiveRegulationsEn.pdf
- scc-controller-to-processor-en.pdf - The official Standard Contractual Clauses (Controller-to-Processor form) referenced throughout 01 and C1/G11. Source: sdaia.gov.sa/Documents/StandardContractualClausesForPersonalDataTransferEN.pdf
- bcr-guidelines-en.pdf - Guidelines for Binding Common Rules, for context on why SCC (not BCR) is the applicable safeguard for a third-party vendor like Anthropic (G11). Source: sdaia.gov.sa/Documents/CommonRulesBCRForPersonalDataTransferEN.pdf
- sdaia-risk-assessment-guideline-en.pdf - The official Risk Assessment Guideline for Transferring Personal Data Outside the Kingdom (Feb 2025), referenced throughout 02/G12. Source:

sdaia.gov.sa/en/SDAIA/about/Documents/RisksTransferringDataOutsideKingdomEn.pdf

- national-register-of-controllers-rules-en.pdf - Rules Governing the National Register of Controllers, relevant to the registration question in 04/G14. Source: sdaia.gov.sa/Documents/TheRulesGoverningTheNationalRegisterOfControllersWithinTheKingdomPublicEN.pdf

- cst-cloud-computing-services-provisioning-regulations-en.pdf - The CURRENT cloud computing regulations (supersedes the older 2019 Cloud Computing Regulatory Framework), relevant to 07/G4. Source: cst.gov.sa, Regulation Document Listing, Decision 506/1445 (08/10/2023).

- nphies-tou-verbatim-ar.pdf - Verbatim text of every accordion section of the live NPHIES portal Terms and Conditions page (Arabic - no PDF version of this page exists, so this is a direct DOM text extraction via chrome-devtools MCP with every section expanded, not a summary). Source: nphies.sa/terms-and-conditions, captured 2026-07-22. Companion analysis: 06 above.

Also bring to the meeting

docs/counsel-scoping-checklist.pdf and the Arabic version - the standalone scoping checklist already built for the first counsel meeting (docs/post-CR.md Section B1). That's the agenda; this folder is the supporting material once the engagement actually starts drafting.

Why these determinations matter to each other

Several files depend on the same unresolved question (04) - Taweed's role (controller vs. processor) for the clinic-data relationship. 01, 02, and 05 all have a [COUNSEL TO CONFIRM] marker tied to whatever 04 resolves to. Don't fill those in independently; resolve 04 first, then the rest follow from it.